

LEITNER-HERNANDEZ, et al v LAKESIDE VENTURES, LLC, et al

24CV47786

PLAINTIFF'S DEMURRER TO ANSWER

This is a real property dispute involving 1475 Railroad Flat Road, Mokelumne Hill, California, 95245 ("Property"). Now before the Court is the demurrer brought by Plaintiff/Cross-Defendant Vicki Leitner-Hernandez ("Vicki") and Miguel Hernandez ("Miguel") as to the Answer purportedly brought by Lakeside Mobile Home Estates, LLC ("Lakeside") and Bonnie Hurley ("Hurley")(collectively "Cross-claimants").

As an initial matter, the Court notes that Lakeside has not properly answered the Complaint. Lakeside is a limited liability company. As such, it cannot represent itself and must be represented by a licensed attorney. (*CLD Construction, Inc. v. City of San Ramon* (2004) 120 Cal.App.4th 1141, 1146.)

The Court also notes that Vicki Hernandez is purporting to represent both herself and Miguel in this matter in pro per. However, Vicki does not appear to be a licensed attorney and as such cannot represent Miguel in this matter.

On March 6, 2025, Lakeside/Hurley filed a notice of filing an Amended Answer which would moot the instant demurrer.

In the interests of justice, the Court will issue the foregoing as a *provisional* tentative ruling, despite the fact that both Lakeside and Miguel are not properly represented. The Court finds that the filing of an Amended Answer moots the demurrer to the original Answer. A final ruling will be delayed until April 16, 2025, in order to allow Lakeside an opportunity to seek licensed counsel and for Miguel to either obtain counsel or enter an appearance on his own behalf.

The Clerk shall provide notice of this Ruling to the parties forthwith. No further formal Order is required.

CHARTER-SMITH v MALLERY

24CV47281

**PLAINTIFF'S MOTION TO COMPEL THE DEPOSITION OF RHONDA COPELAND
AND REQUEST FOR SANCTIONS**

This case involves a dispute over real property known as 1374 Hubbard Road, Sheep Ranch, CA 95246. Now before the Court is Plaintiff's Motion to Compel Deposition and for Sanctions.

The Motion does not comply with Local Rule 3.3.7. All matters noticed for the Law & Motion calendar shall include the following language in the notice:

3.3.7 Tentative Rulings (Repealed Eff 7/1/06, As amended 1/1/18) All parties appearing on the Law and Motion calendar shall utilize the tentative ruling system. Tentative Rulings are available by 2:00 p.m. on the court day preceding the scheduled hearing and can be accessed either through the court's website or by telephoning 209-754-6285. The tentative ruling shall become the ruling of the court, unless a party desiring to be heard so advises the Court no later than 4:00 p.m. on the court day preceding the hearing including advising that all other sides have been notified of the intention to appear by calling 209-754-6285. Where appearance has been requested or invited by the Court, all argument and evidence is limited pursuant to Local Rule 3.3. All matters noticed for the Law & Motion calendar shall include the following language in the notice:

Pursuant to Local Rule 3.3.7, the Court will make a tentative ruling on the merits of this matter by 2:00 p.m. the court day before the hearing. The complete text of the tentative ruling may be accessed on the Court's website or by calling 209-754-6285 and listening to the recorded tentative ruling. If you do not call all other parties and the Court by 4:00 p.m. the court day preceding the hearing, no hearing will be held and the tentative ruling shall become the ruling of the court [emphasis in original.]

Failure to include this language in the notice may be a basis for the Court to deny the motion.